

The Performing Animals Rules, 1973

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Union of India - Act

The Performing Animals Rules, 1973

UNION OF INDIA

India

The Performing Animals Rules, 1973

Rule THE-PERFORMING-ANIMALS-RULES-1973 of 1973

Published on 2 May 1973

Commenced on 2 May 1973

[This is the version of this document from 2 May 1973.]

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The Performing Animals Rules, 1973

Published vide Government of India, Ministry of Food and Agriculture (Department of Food), Notification No. 35-4/72-LDI, dated 2.5.1973.

19.

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Whereas the draft of the Performing Animals Rules, 1969, was published as required by sub-section (1) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

), at page 3239 of the Gazette of India, Part II, section 3, sub--section (ii), dated the 2nd August, 1969, under the notification of the Government of India in the late Ministry of Food, Agriculture, Community Development and Co--operation (Department of Agriculture) No. S.O. 3901, dated the 25th July, 1969, inviting objections or suggestions

from all persons likely to be affected thereby, till the 15th September, 1969.

And whereas the said Gazette was made available to the public on 2-8-1969;

And whereas no objections or suggestions were received from the public on the said draft;

Now, therefore, in exercise of the powers conferred by section 38 read with section 37 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

), the Central Government hereby makes the following rules, namely:--

1.

Short title and commencement .-(1) These rules may be called The Performing Animals Rules, 1973.

(2)

They shall come into force in any State on such date as the State Government, by notification in the Official Gazette, appoint.

2.

Definitions .-In these rules, unless the context otherwise requires,--

(a)

"Act" means the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

);

(b)

"performing animal" means any animal which is used at, or for the purpose of, any entertainment to which the public are admitted through sale of tickets;

(c)

"prescribed authority" means the State Government or such other authority as the State Government may, by general or special order, specify in this behalf;

(d)

"Schedule" means a Schedule appended to these rules.

3.

Application for registration .-(i) Every application by a person desirous of exhibiting or training any performing animal for registration under the Act shall be in the form and shall contain the particulars set out in the First Schedule;

(ii)

Every such application shall be made to the prescribed authority within whose jurisdiction the applicant ordinarily resides and, if he has no fixed place of residence, the application shall be made to such authority as the Central Government may by order specify in this behalf.

4.

Fee and registration .-Every application for registration shall be accompanied by a fee of rupees twenty-five which may be paid either in cash or in such other manner as may be specified by the prescribed authority.

5.

Form or certificate of registration .-(i) The certificate of registration to be issued by the prescribed authority shall be in the form set out in the Second Schedule.

(ii)

Every registration shall be given a serial number according to the order in which it is made, and the serial number shall be inserted in the certificate of registration issued to the applicant.

6.

Register .-Every person to whom a certificate of registration is issued under these rules shall have his name entered in a register which shall be kept in the form set out in the Third Schedule.

7.

Inspection of register .-The register kept under these rules shall be open to inspection during office hours on any working day on payment of a fee of two rupees and any person may take extract therefrom or may require the prescribed authority to issue to him a certified copy of any entry therein on payment of a fee of five rupees.

8.

Application for variation of entries in register .-Every application under sub--section (5) of section 23 of the Act for the

variation of any particulars entered in the register shall be in the form set out in the Fourth Schedule and when any particulars are varied the existing certificate of registration shall be cancelled and a new certificate issued to the applicant.

9.

Issue of duplicate copies of certificates .-Any person whose name is registered under these rules may, on proof by him that the original certificate of registration has been lost or destroyed and on payment of a fee of rupees five, be given a duplicate copy of the certificate of registration which for the purposes of these rules shall have the same effects as the original certificate of registration.

10.

Copies of certificates, etc., to be sent to the Animal Welfare Board .-The prescribed authority shall cause a copy of every certificate of registration or duplicate thereof or a new certificate issued under these rules to be sent to the Animal Welfare Board established under the Act, as soon as may be after it is issued.

FIRST SCHEDULE

(See rule 3)

FORM OF APPLICATION

I, the undersigned, do hereby apply for registration under the Performing Animal Rules, 1973 and do hereby declare the following particulars to be true and complete to the best of my knowledge and belief.

Signature

Date

Address to which certificate of registration is to be sent.

.....

.....

PARTICULARS

1. Full name of applicant(in block letters)

2. State name (if any used in India)

3. Nationality

4. Either (a) address of fixed place of residence in India, or (b) permanent postal address in India to which letters addressed to the applicant may be forwarded.

5. Address or addresses (if any) in India, other than temporary addresses while on tour, at which applicant trains or intends to train performing animals. (If none, write, "None".)

6. State whether previously registered under the Performing Animals Rules, 1973. If so, state the number and date of certificate of registration.

7. (i) Kinds of performing animals proposed to be to be-----

(a)

trained,

(b)

exhibited,

Stating number of each kind Kind Number

(ii)

Trained animals already available for being exhibited.

8. Describe briefly the general nature* of the performance or performances in which the performing animals are to be exhibited or for which they are to be trained, mentioning any apparatus which is used for the purpose of the performance.

* The description must be sufficient to give a general idea of what is done by the animals taking part in the performance, and should state the approximate duration of the performance, the number of times for which it is usually to be given in one and the same day, and the number of animals of each kind taking part in the performance. It need not give details which would divulge any professional secret.

SECOND SCHEDULE

(See Rule 5)

CERTIFICATE OF REGISTRATION

This is to certify that the person to whom the under-mentioned particulars relate has this day been registered in Register

under the performing Animals Rules, 1975 with the registration authority for the.....

Name of the place :

Date :

Serial Number of Entry in Register.....

Signature of Clerk of registration authority

PARTICULARS

Name of trainer of exhibitor

Nationality

Either (a) Address of fixed place of residence in India or

(b) Permanent postal address in India to which letters addressed to the trainer or exhibitor may be forwarded

Address or addresses at which the performing animals are to be trained

Particulars of any previous registration

Kinds of performing animals

Description of general nature of performance

Date of Registration

Particulars of any order of Court made under section 24 of the Prevention of Cruelty to Animals Act, 1960

To be trained

To be exhibited

Kind No.

Kind No.

1

2

3

4

5

6

7

8

9

10

THIRD SCHEDULE

(See rule 6)

FORM OF REGISTER

Name of trainer of exhibitor

Nationality

Either (a) Address of fixed place of residence in India or

(b) Permanent postal address in India to which letters addressed to the trainer or exhibitor may be forwarded

Address or addresses at which the performing animals are to be trained

Particulars of any previous registration

Kinds of performing animals

Description of general nature of performance

Date of Registration

Particulars of any order of Court made under section 24 of the Prevention of Cruelty to Animals Act, 1960

To be trained

To be exhibited

Kind No.

Kind No.

1

2

3

4

5
6
7
8
9
10

FOURTH SCHEDULE

FORM OF APPLICATION FOR VARIATION OF PARTICULARS ENTERED IN REGISTER

Application to have the particulars entered in register with respect to the applicant varied.

To

The Prescribed Authority,

Full Name of applicant (in block letters).....

Number and date of certificate of registration

I return herewith my certificate of registration under the Performing Animals Rules, 1973, and I hereby apply to have the particulars entered in the Register with respect to be varied, as follows and for the reasons given below :

I also request that my existing certificate may be cancelled and a new certificate of registration may be issued to me.

Signature

Address

Note.-- No fee is payable for the issue of a new certificate of registration.

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